

In the famous *Gopalan* case[11] (1950), the Supreme Court has taken a narrow interpretation of the Article 21. It held that the protection under Article 21 is available only against arbitrary executive action and not from arbitrary legislative action. This means that the State can deprive the right to life and personal liberty of a person based on a law. This is because of the expression 'procedure established by law' in Article 21, which is different from the expression 'due process of law' contained in the American Constitution. Hence, the validity of a law that has prescribed a procedure cannot be questioned on the ground that the law is unreasonable, unfair or unjust. Secondly, the Supreme Court held that the 'personal liberty' means only liberty relating to the person or body of the individual. But, in *Maneka* case[12] (1978), the Supreme Court overruled its judgement in the *Gopalan* case by taking a wider interpretation of the Article 21. Therefore, it ruled that the right to life and personal liberty of a person can be deprived by a law provided the procedure prescribed by that law is reasonable, fair and just and not arbitrary, fanciful or oppressive. In order that the procedure is reasonable, fair and just, the procedure should conform to the principles of "natural justice". In other words, it has introduced the American expression 'due process of law'. In effect, the protection under Article 21 should be available not only against arbitrary executive action but also against arbitrary legislative action. Further, the court held that the 'right to life' as embodied in Article 21 is not merely confined to animal existence or survival but it includes within its ambit the right to live with human dignity and all those aspects of life which go to make a man's life meaningful, complete and worth living. It also ruled that the expression 'Personal Liberty' in Article 21 is of the widest amplitude and it covers a variety of rights that go to constitute the personal liberties of a man.

The Supreme Court has reaffirmed its judgement in the *Maneka* case in the subsequent cases. It has declared the following rights as part of Article 21:

1. Right to live with human dignity.
2. Right to decent environment including pollution free water and air and protection against hazardous industries.
3. Right to livelihood.
4. Right to privacy.
5. Right to shelter.
6. Right to health.
7. Right to free education up to 14 years of age.
8. Right to free legal aid.
9. Right against solitary confinement.
10. Right to speedy trial.
11. Right against handcuffing.